

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. DRISKILL

CASE NUMBER: 25CVG-02662

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. Plaintiff Portfolio Recovery Associates, LLC opposes the Motion.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 7, 2026, to Plaintiff and Counsel for failure to appear at the July 27, 2026 hearing. A response to the OSC has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. The Court confirms today’s review hearing set for 9:00 a.m.

WELLS FARGO BANK, N.A. VS. PANGELINA

CASE NUMBER: 25CVG-02656

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A., seeks an order deeming admitted the truth of matters specified in Plaintiff’s Request for Admissions, Set One, which was served on Defendant Sandra Pangelina by mail on June 29, 2026. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare*

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail, and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). However, Plaintiff did not request sanctions and did not provide any basis for determining a reasonable amount. No sanctions will be imposed.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Sandra Pangelina is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: WITT

CASE NUMBER: 26CV-0211146

Tentative Ruling on Petition for Change of Name: Petitioner William Eulis Witt seeks to change his name to William James Witt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WRIGHT VS. BURLINGTON COAT FACTORY OF TEXAS, INC, ET AL.

CASE NUMBER: 25CV-0209085

Tentative Ruling on Motion for Summary Judgment: Defendant Burlington Coat Factory Texas, Inc. ("BCFT") moves for summary judgment as to all claims asserted against it. The motion is brought on the grounds that BCFT did not breach their duty of care. Plaintiff Terry Wright opposes the motion.

Evidentiary Objections. Plaintiff objections to Exhibit A on the grounds that it is not based on personal knowledge and to Exhibit D on the grounds that it has not been authenticated. Plaintiff's objections are **SUSTAINED**. Defendant objections to the consideration of any arguments and/or facts raised by the deposition of PQM Spencer Webster because the deposition was not provided as an exhibit. Defendant also objection to the photograph contained in the Declaration of Anthony Andre, Ph.D. purportedly showing the vestibule area of the subject store because it was not disclosed during discovery and has not been authenticated. Defendant's objections are also **SUSTAINED**.

Factual Background. This is a personal injury action arising out of a trip and fall at the Burlington Coat Factory store located in Redding, California. Plaintiff alleges that on December 2, 2023, she entered the vestibule area of the store during a time when it had rained or was raining and slipped and fell resulting in her injuries due to a hazard created by rainwater on the floor. Plaintiff alleges that BCFT's failure to maintain safe conditions and/or adequately warn of the hazard was the cause of her injuries.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that